



Services Agreement

OptiMind Educational Strategies, LLC — HTML draft of the executed template, for internal reference

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Attorney review needed before use. This HTML version was drafted from the existing Services Agreement template on file. The highlighted block inside Section 2.2 is new language added per the No-Show & Cancellation Policy discussion — it has not yet been reviewed by an attorney or approved by Sarah, and should be treated as a proposal, not a final clause. Everything else reproduces the existing template as-is.

Services Agreement

THIS SERVICES AGREEMENT (the "Agreement") is made on _____ (the "Effective Date") by and between _____ (the "Client"), and OPTIMIND EDUCATIONAL STRATEGIES LLC, a Maryland limited liability company (the "Provider"). Client and Provider are sometimes collectively referred to herein as the "Parties" and individually as a "Party".

RECITALS

WHEREAS, Client wishes to engage Provider for certain services (collectively, the "Services" as defined herein), and Provider agrees to provide the Services to Client in accordance with the terms and conditions of this Agreement.

AGREEMENTS

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, and intending to be legally bound, the Parties agree as follows:

- 1. Services.** Client hereby retains Provider to non-exclusively perform those services indicated and described in Exhibit A herein (collectively, the "Services"). The Parties acknowledge and agree that during the Term of this Agreement, as hereinafter defined, the Services may be modified and/or expanded from time to time upon a written agreement executed by authorized representatives of the Parties expressly referencing this Agreement. Client acknowledges and agrees that its right to receive the Services hereunder is non-exclusive. Provider may

provide the Services or such other similar services to any other third-party in its sole discretion and without liability to Client.

2. Fees and Billing.

2.1.Fees for Services Rendered. As full consideration for the provision of the Services, Client shall pay Provider fees at those rates described in Exhibit B herein (the "Fees"). Provider shall have the right to modify the Fees at any time during the Term, hereinafter defined, in Provider's sole discretion by providing Client with fifteen (15) day written notice of such Fee modification. The Client agrees to pay 2.99% credit card processing fee.

2.2.Cancellation, Late, and No-Show Policy. In the event that Client cancels a Services session with Provider (a "Session") within 24 hours of the session, Client will be liable for payment of the full amount for such Session. Further, if a Client is more than twenty (20) minutes late to its scheduled Session, Provider has the right to consider the Session canceled, and Client shall be liable for payment of the full amount of such Session.

ADDED — PENDING REVIEW

If Client fails to join a scheduled Session, Provider will attempt contact by text message at five (5) minutes past the scheduled start time, and by phone call — to Client and, if Client is a minor, to Client's parent/guardian — at ten (10) minutes past the scheduled start time. If Client has not joined the Session within twenty (20) minutes of the scheduled start time, the Session will be ended and Client will be billed for the full Session fee as set forth above. Client and, if applicable, Client's parent/guardian will be notified by email, including a formal notice regarding time management. The same no-show billing applies if Client joins the Session but does not do so in compliance with the session-environment requirements described in Exhibit A — in that case the Session will be terminated and billed as a no-show. Provider tracks early cancellations, late cancellations, and reschedules as separate, distinct outcomes in Client's record.

2.3.Electronic Communication. Emails and Text Messages that are, in Provider's sole discretion, brief in nature are considered standard best practice and will not result in Client being liable for payment to Provider. Emails and text messages that are, in Provider's sole discretion, more than a brief exchange will result in Client being responsible for payment of such email or text message at Provider's applicable rate. Phone calls with outside providers and Client, or his or her family, will be billed in half-hour increments.

2.4.Payment of Fees. Provider shall prepare and submit an invoice to Client covering the total amount owed for Fees for Services provided as agreed upon in this Agreement on a monthly basis. Client agrees that, prior to receiving services outlined in the Services Agreement, Client will voluntarily file with OptiMind Educational Strategies valid credit card information for a credit card in their name. The Client hereby authorizes OptiMind Educational Strategies to charge the credit card provided and kept on file the balance of any outstanding invoices. Invoices will be sent out at the end of each month, and the Client's credit card will be charged for the full invoice amount on the date the invoice is issued. The Client agrees to maintain valid and up-to-date credit card information on file with OptiMind Educational Strategies. The Client acknowledges and agrees that this authorization will remain in effect until the Service Agreement is terminated or until the Client provides written notice to OptiMind Educational Strategies to cancel this authorization, allowing for a reasonable time

to process such cancellation. The Client agrees to pay all charges incurred in accordance with the terms and conditions of this Service Agreement.

2.5.Late Fee and Payment Failure. In the event that the credit card on file becomes inactive, invalid, or otherwise unable to process the payment, the Client will be notified and given 14 days to provide updated payment information. If the payment is not successfully processed within this period, OptiMind Educational Strategies reserves the right to charge a late fee (the "Late Fee") equal to twenty-five and 00/100 Dollars (\$25.00) on the fifteenth (15th) day from the date of the invoice. In addition to the Late Fee, overdue payments shall bear interest from the fifteenth (15th) day from the date of the invoice at a rate of 1.5% per month, compounded monthly. Provider reserves the right to reject any additional request for Services until any outstanding balances have been satisfied by Client.

3. Term.

3.1.Term. This Agreement shall continue until the completion of the agreed upon Services under this Agreement (the "Term").

3.2.Termination by Either Party. Either Party may terminate this Agreement at any time for any reason, with or without cause, by notifying the other Party within five (5) days prior to the next scheduled Session.

3.3.Obligations upon Termination. Termination of this Agreement for any reason shall not discharge either Party's liability for obligations incurred hereunder and amounts unpaid at the time of such termination. Client shall pay Provider for all Services rendered prior to the effective date of termination. Upon termination, each Party shall return the other Party's confidential information or personal property that is in its possession at the time of termination.

4. Authorization to Disclose and Access Information. In order to allow Provider to furnish the Services in the most efficient and effective manner, contemporaneous with the execution of this Agreement, Client agrees to enter into that Authorization to Disclose and Access Information form attached hereto as Exhibit C.

5. Relationship of the Parties. The relationship of the Parties hereto is that of an independent contractor. Nothing in this Agreement, and no course of dealing between the Parties, shall be construed to create or imply an employment or agency relationship or a partnership or joint venture relationship between the Parties or between one Party and the other Party's employees or agents. Provider is an independent contractor, and neither Party has the authority to bind or contract any obligation in the name of or on account of the other Party or to incur any liability or make any statements, representations, warranties or commitments on behalf of the other Party, or otherwise act on behalf of the other. If applicable, each Party shall be solely responsible for payment of the salaries of its employees and personnel (including withholding of income taxes and social security), workers' compensation, and all other employment benefits.

6. Intellectual Property; Rights to Content. All rights, title and interest in and to the Provider Material, as defined herein, is owned solely and exclusively by Provider without restrictions and will not be considered a "work for hire" under any copyright or other intellectual property laws or principles. Client hereby expressly disclaims any and all rights, title and interest therein. "Provider Material" means Provider's materials existing as of the execution

of this Agreement and other intellectual property developed or acquired by Provider, including, without limitation, process documents, templates, protocols, forms, formats, marketing materials, a/v materials, previous work product, software, user guides, manuals, presentations, and databases.

- 7. Confidential Information.** During the term of this Agreement and thereafter, except as required by law, neither Party may disclose, communicate, or divulge to, or use for the direct or indirect benefit of, any third party, any information regarding the personal information, business methods, business policies, procedures, techniques, or any other confidential information relating to or dealing with the Services, made known to such Party or learned or acquired by such Party during the term of this Agreement. Furthermore, the Parties shall keep this Agreement and its contents confidential and shall not disclose any information pertaining to the contract to any third party.
- 8. Limited Warranty.** PROVIDER DOES NOT WARRANT IN ANY FORM THE RESULTS OR ACHIEVEMENTS OF THE SERVICES PROVIDED OR THE RESULTING WORK PRODUCT AND DELIVERABLES. PROVIDER AGREES TO PERFORM THE SERVICES IN ACCORDANCE WITH THE GENERALLY ACCEPTED INDUSTRY STANDARDS AND PRACTICES.
- 9. Indemnification/Waiver.** Except in the case of Provider's willful misconduct or gross negligence, Client will indemnify, defend, and hold Provider and its owners, employees, agents and contractors harmless against any injury, liabilities, fines, claims, damages and actions, costs and expenses of any kind or nature (including court costs and attorneys' fees) arising from or based upon (i) the Services performed under this Agreement, (ii) any other matter incidental to the parties relationship, or (iv) Client's breach of this Agreement. IN NO EVENT SHALL PROVIDER BE LIABLE UNDER THIS AGREEMENT TO CLIENT OR ANY THIRD PARTY FOR ANY INCIDENTAL, CONSEQUENTIAL, INDIRECT, STATUTORY, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING, BUT NOT LIMITED TO, LOST PROFITS, LOSS OF USE, LOSS OF TIME, INCONVENIENCE, OR DAMAGE TO GOOD WILL OR REPUTATION, REGARDLESS OF WHETHER SUCH LIABILITY IS BASED ON BREACH OF CONTRACT, TORT, STRICT LIABILITY OR OTHERWISE, AND EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES OR SUCH DAMAGES COULD HAVE BEEN REASONABLY FORESEEN. THIS SECTION SHALL SURVIVE THE TERMINATION OF THE AGREEMENT.
- 10. Force Majeure.** Neither Party shall be liable hereunder for any failure or delay in the performance of its obligations under this Agreement, except for the payment of money, if such failure or delay is on account of causes beyond its reasonable control, including civil commotion, war, fires, floods, accident, earthquakes, inclement weather, telecommunications line failures, electrical outages, network failures, governmental regulations or controls, stay-at-home orders, pandemics, COVID-19, injury, illness, casualty, strikes or labor disputes, terrorism, acts of God, or other similar or different occurrences beyond the reasonable control of the Party so defaulting or delaying in the performance of this Agreement, for so long as such force majeure event is in effect. Each Party shall use reasonable efforts to notify the other Party of the occurrence of such an event within twenty-four (24) hours of its occurrence.
- 11. Governing Law.** This Agreement will be governed by and interpreted in accordance with the laws of the State of Maryland, without giving effect to the principles of conflicts of law of such state.

- 12. Attorney's Fees; Collection Expenses.** If either Party incurs any legal fees associated with the enforcement of this Agreement or any rights under this Agreement, the prevailing Party shall be entitled to recover its reasonable and actual attorney's fees and any court, arbitration, mediation, or other litigation expenses from the other Party. If Provider incurs any costs, expenses, or fees, including reasonable attorney's fees and professional collection services fees, in connection with the collection or payment of any amounts due it under this Agreement, Client agrees to reimburse Provider for all such reasonable and actual costs, expenses and fees.
- 13. Assignment.** Neither Party may assign or subcontract this Agreement or any duties or obligations under this Agreement without express written consent from the other Party. Any such attempted assignment or subcontract of this Agreement, duties or obligations hereunder without the prior written consent of the other Party shall be void.
- 14. Severability.** If any provision or portion of this Agreement shall be rendered by applicable law or held by a court of competent jurisdiction to be illegal, invalid, or unenforceable, the remaining provisions or portions shall remain in full force and effect.
- 15. Survival.** Each term and provision of this Agreement that should by its sense and context survive any termination or expiration of this Agreement shall so survive regardless of the cause and even if resulting from the material breach of either Party to this Agreement.
- 16. Counterparts.** This Agreement may be executed in one or more counterparts, each of which will be deemed to be an original, but all of which together will constitute one and the same instrument, without necessity of production of the others. An executed signature page delivered via facsimile transmission or electronic signature shall be deemed as effective as an original executed signature page.
- 17. Waiver.** No waiver of any term or right in this Agreement shall be effective unless in writing, signed by an authorized representative of the waiving Party. The failure of either Party to enforce any provision of this Agreement shall not be construed as a waiver or modification of such provision, or impairment of its right to enforce such provision or any other provision of this Agreement thereafter.
- 18. Entire Agreement; Modification.** This Agreement is the entire Agreement between the Parties with respect to the subject matter hereof and supersedes any prior agreement or communications between the Parties, whether written, oral, electronic or otherwise. No change, modification, amendment, or addition of or to this Agreement or any part thereof shall be valid unless in writing and signed by authorized representatives of the Parties. Each Party hereto has received independent legal advice regarding this Agreement and their respective rights and obligations set forth herein. The Parties acknowledge and agree that they are not relying upon any representations or statements made by the other Party or the other Party's employees, agents, representatives or attorneys regarding this Agreement, except to the extent such representations are expressly set forth in this Agreement.

In witness whereof, the Parties hereto have executed this Services Agreement on the date set forth below.

PROVIDER

OPTIMIND EDUCATIONAL STRATEGIES LLC

By:

Name: Sarah Ritter

Title: Owner

Date: _____

CLIENT

First Child's Full Name / Parent-Guardian Signature

Second Child's Full Name / Parent-Guardian Name

Date

EXHIBIT A

Description of Services

Executive Function Coaching

The Specialist provides individualized coaching to strengthen executive functioning skills through targeted instruction, strategies, exercises, and activities tailored to the client's needs. Services may include support with organization, planning, time management, prioritization, study skills, emotional regulation, accountability, and the management of academic, professional, or daily-life demands. The Specialist may also meet with parents or guardians, recommend resources or tools, and collaborate with other professionals, as appropriate. Clients participating virtually are expected to attend sessions from a private, distraction-free environment using a stationary device and an appropriate work surface.

Special Education Advocacy

The Specialist provides consultation and advocacy to help families navigate the special education process. Services may include reviewing educational records, interpreting evaluations, providing recommendations regarding IEPs and Section 504 Plans, preparing for and attending school meetings, communicating with school personnel, and helping families make informed educational decisions. Advocacy services are consultative and do not guarantee any specific outcome.

College Counseling

The Specialist provides individualized guidance throughout the college planning and application process. Services may include college selection, application planning, essay coaching, executive functioning support, transition planning,

disability accommodations guidance, and assistance identifying colleges that align with the student's goals, strengths, and support needs.

EXHIBIT B
Fee Schedule

New Client Intake Meetings	\$500.00 per Session
50-Minute Executive Function Sessions	\$235.00 per Session
Special Education Advocacy	\$250.00 per hour
College Counseling	\$250.00 per hour

EXHIBIT C
Authorization to Disclose and Access Information

By the signature(s) set forth below, I, _____ (the "Client") and/or, if Client is under 18 years of age, I, _____ (a "Releasing Party") on behalf of Client, hereby execute this authorization for the limited release of information and consent to certain services (this "Authorization") (i) authorize OptiMind Educational Strategies LLC, to release to or obtain from, any third party, and authorize any such third party to release to OptiMind Educational Strategies LLC any and all information about Client in the possession of OptiMind Educational Strategies LLC or such third-party, as applicable, including but not limited to report cards, progress reports, quarterly reports, meeting notes and summary reports of meetings, medical records, observation reports, correspondence to and from parents/guardians and (ii) consent to Client's receipt of the Services. Any Released Information being obtained by OptiMind Educational Strategies LLC can be sent to:

OptiMind Educational Strategies LLC
Attn: Sarah Ritter
1717 River Rd
Annapolis, MD 21409
Email: sarah@optimind-es.com

Client understands that this release of the Released Information shall become effective upon Client's signature below, unless Client is under the age of 18, in which case Releasing Party understands that this release shall become effective upon Releasing Party's signature below, and that this Authorization may be withdrawn and will immediately terminate at any time, upon written notice from either Client or Releasing Party.

IN WITNESS WHEREOF, the undersigned hereby consent(s) to the release of the Released Information as set forth above.

CLIENT

First Child's Full Name

First Child's Date of Birth

Second Child's Full Name

Second Child's Date of Birth

RELEASING PARTY

Signature

Full Name

Relationship to Client

Date